

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 2/Information Technology (IT) Act, 2000

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 66D

— Punishment for cheating by personation by using computer resource

The fake Instagram account impersonated the victim and induced third parties to transfer money.

Section 66C

— Punishment for identity theft

Only if the offender fraudulently used a password, electronic signature or other protected unique identification feature; use of ordinary name/photos alone is not enough.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 66D** is the clearest IT Act provision because the account holder pretended to be the victim on a computer resource and used that personation to obtain money.

✓ STRENGTHS & RIGHTS

- 1** Two actual transfers strongly support the cheating element.

✗ RISKS & OBLIGATIONS

- 1** Ordinary use of the victim's photographs does not itself establish a separate private-area image offence.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve the fake profile URL, messages, account identifiers and transfer records.

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